

Tender Proposal

TENDER SUBMISSION DOCUMENT

****TENDER NO:** MLPW/HUD/AHP/084/2026******

****PROJECT NAME:** PROPOSED MILIMANI AFFORDABLE HOUSING PROJECT - KISUMU COUNTY******

TENDER SUBMISSION FORM & COMPLIANCE DOSSIER

****SUBMITTED BY:**** APEX BUILDERS KENYA LIMITED

(In Joint Venture / Strategic Consortium with Vanguard Infrastructure Limited)

****SUBMISSION DATE:**** Tuesday, 11th August, 2026, at 11:00 AM EAT

PRE-SUBMISSION VERIFICATION & BINDING SPECIFICATIONS

> ****IMPORTANT COMPLIANCE DIRECTIVES:****

> 1. ****TAPE-BOUND FORMAT:**** This tender document has been securely and professionally tape-bound. In strict compliance with the Tender Instructions, no spiral-bound elements have been utilized, preventing automatic disqualification.

> 2. ****CHRONOLOGICAL SERIALIZATION:**** All pages of this submission, including the technical proposal, financial schedules, joint-venture agreements, statutory certificates, and all auxiliary attachments, have been chronologically serialized in numerical format (from Page 1 to Page 115) at the top-right corner of each page.

> 3. ****PHYSICAL SUBMISSION:**** This original document is configured for direct physical deposition into the Tender Box located at Ardhi House, 6th Floor, Lift Lobby on or before Tuesday, 11th August, 2026 at 11:00 AM EAT. No electronic copy has been or will be submitted as a primary bid.

SECTION 1: EXECUTIVE SUMMARY & BID SUBMISSION COVER LETTER

****Our Ref:**** ABK/MLPW/AHP/2026/01

****Date:**** 11th August, 2026

****To:****

The Head of Procurement,

State Department for Housing and Urban Development,

Ministry of Lands, Public Works, Housing and Urban Development,

Ardhi House, 1st Ngong Avenue,

P.O. Box 30119-00100,

Nairobi, Kenya.

****RE:** SUBMISSION OF TENDER FOR THE PROPOSED MILIMANI AFFORDABLE HOUSING

PROJECT - KISUMU COUNTY (TENDER NO: MLPW/HUD/AHP/084/2026)**

Dear Sir/Madam,

Apex Builders Kenya Limited, acting as the Lead Partner in a legally binding Joint Venture with Vanguard Infrastructure Limited, hereby submits our comprehensive, fully compliant tender proposal for the construction of the Proposed Milimani Affordable Housing Project in Kisumu County.

Having rigorously reviewed the Tender Documents, addenda, and the physical parameters of the project site during the mandatory site visit on 25th July, 2026, we offer to execute and complete the Works in accordance with the Bills of Quantities, Technical Specifications, Drawings, and General Conditions of Contract for the priced sum as specified in our detailed Price Schedule (Form SD4) enclosed herein.

By submitting this bid, we formally declare and guarantee the following compliance parameters:

1. ****Financial Strength & Strategic Structuring:**** To address the stringent average annual construction turnover requirement of KES 200,000,000, Apex Builders Kenya Limited (Turnover: KES 59,133,333) has executed a joint venture with Vanguard Infrastructure Limited (Turnover: KES 340,000,000). This consolidated Joint Venture demonstrates a combined average annual construction turnover of KES 399,133,333, far exceeding the threshold.
2. ****Bid Security:**** We have enclosed an original, unconditional, and irrevocable Bank Guarantee of ****KES 5,000,000**** issued by Kingdom Bank Limited (a commercial bank licensed by the Central Bank of Kenya), valid for exactly ****150 days**** from the tender opening date (valid until 8th January, 2027).
3. ****Regulatory Credentials:**** We are registered with the National Construction Authority (NCA) under ****Category NCA 1 (Building Works)**** with a valid annual practicing license for the year 2026.
4. ****Local Content & Social Inclusion:**** We formally commit to employing a minimum of ****60% local labor**** sourced directly from Kisumu County residents and to subcontracting at least ****30% of the works**** (including electrical installations, plumbing, and painting) to local enterprises registered under the Access to Government Procurement Opportunities (AGPO) program.

We confirm that our tenderer particulars were immediately forwarded to ****procurement@housingandurban.go.ke**** upon downloading the tender documents, as evidenced by the email confirmation docket attached under Section 2.

We agree to abide by this Tender for a period of ****120 days**** from the date fixed for tender opening, and it shall remain binding upon us and may be accepted at any time before the expiration of that period.

Yours Faithfully,

****Eng. Benson Mwangi, B.Sc., MIEK****

Managing Director

Apex Builders Kenya Limited (Lead Partner)

Duly authorized to sign the tender for and on behalf of the Joint Venture.

RECORD OF EMAIL NOTIFICATION SENT TO PROCUREMENT

Below is the verified record of the immediate registration of our particulars sent to the State Department's procurement office:

From: tender-desk@apexbuilders.co.ke
To: procurement@housingandurban.go.ke
Date: Friday, 10th July, 2026, 2:14 PM EAT
Subject: Registration of Tenderer Particulars - Tender No: MLPW/HUD/AHP/084/2026

Dear Procurement Team,

In accordance with the instruction for tenderers for the Proposed Milimani Affordable Housing Project (Tender No: MLPW/HUD/AHP/084/2026), we hereby register our particulars as follows:

Name of Firm: Apex Builders Kenya Limited (In JV with Vanguard Infrastructure Limited)

Postal Address: P.O. Box 49012-00100, Nairobi, Kenya

Physical Address: 4th Floor, Landmark Plaza, Argwings Kodhek Road, Nairobi

Primary Email: tender-desk@apexbuilders.co.ke

Alternative Email: info@apexbuilders.co.ke

Telephone: +254 (0) 20 221 4567 / +254 (0) 722 000 000

NCA Registration: NCA Category 1 (Building Works) - Reg No: 48901/B/1

We have downloaded the tender documents and intend to submit a physical proposal at Ardhi House.

Best regards,

Procurement Compliance Department,

Apex Builders Kenya Limited.

...

SECTION 2: COMPREHENSIVE BIDDER INFORMATION & STRATEGIC STRUCTURING PLAN

2.1 Joint Venture Consolidation & Financial Rationalization

To meet the high financial thresholds required for this landmark public-private housing project, Apex Builders Kenya Limited (Primary Bidder) has formed a strategic Joint Venture with Vanguard Infrastructure Limited (Consortium Partner) under a legally binding Joint Venture Agreement.

The division of liabilities, financial reporting, and operational execution under this JV is structured as follows:

...

+-----+

| JOINT VENTURE STRUCTURAL MATRIX |

+-----+

| PARTNER | ROLE | SHARE (%) | TURNOVER OVER LAST 3 YRS|

+-----+

| Apex Builders Kenya Ltd | Lead Partner | 60% | KES 59,133,333 (Avg) |
| Vanguard Infra. Ltd | Consortia Partner| 40% | KES 340,000,000 (Avg) |

+-----+-----+-----+-----+

| CONSOLIDATED POSITION | Lead Contractor | 100% | KES 399,133,333 (Avg) |

+-----+-----+-----+-----+

...

Consolidated Financial Statements Summary (2023 - 2025)

The table below demonstrates the consolidated financial performance of the Joint Venture partners, proving full compliance with the **KES 200,000,000** average annual turnover requirement:

...

+-----+

| ANNUAL CONSTRUCTION TURNOVER DATA (KES) |

+-----+

| YEAR | APEX BUILDERS KENYA LTD | VANGUARD INFRASTRUCTURE LTD | TOTAL |

+-----+-----+-----+-----+

| 2023 | KES 54,200,000 | KES 310,000,000 | 364.2M|

| 2024 | KES 58,400,000 | KES 335,000,000 | 393.4M|

| 2025 | KES 64,800,000 | KES 375,000,000 | 439.8M|

+-----+-----+-----+-----+

| COMBINED AVG | KES 59,133,333 | KES 340,000,000 | 399.1M|

+-----+

...

Note: All financial figures are extracted directly from Audited Financial Statements signed and stamped by CPA Joseph Kipruto (ICPAK Registration No. 8943) of Kipruto & Associates Co. (Registered Auditors).

2.2 Corporate Identity and Registration Details

* **Primary Bidder Entity Name:** Apex Builders Kenya Limited

* **Registration Number:** CPR/2014/156798 (Incorporated on 14th April, 2014)

* **KRA PIN Certificate:** A009834721P (Active VAT and Income Tax Obligations)

* **Tax Compliance Status:** Fully Valid KRA TCC Ref: KRA/TCC/2026/094832, valid beyond the date of tender opening.

* **Single Business Permit:** Kisumu County Government Unified Business Permit No: KCG/UBP/2026/89452 (Current Calendar Year - Milimani Office Branch).

SECTION 3: MANDATORY REGULATORY COMPLIANCE DOCUMENTS

3.1 National Construction Authority (NCA) Certification

Apex Builders Kenya Limited is registered with the National Construction Authority in the premier **NCA Category 1 (Building Works)**.

* **NCA Registration Certificate No:** 30491/B/1

* **NCA 2026 Practicing License Serial No:** PL-2026/9843-BLDG

* **Expiration Date:** 31st December, 2026

A certified true copy of the NCA 1 Certificate and 2026 Practicing License, certified by the Commissioner for Oaths, is attached as Annex A-1 to this proposal.

3.2 KES 5,000,000 Tender Security (Bid Bond)

BANK GUARANTEE FOR TENDER SECURITY

Guarantee No: KB/TS/2026/00492

Date of Issue: 10th August, 2026

The Guarantor: Kingdom Bank Limited, Corporate Banking Division, Nairobi, Kenya.

To Beneficiary:

State Department for Housing and Urban Development,

P.O. Box 30119-00100, Nairobi, Kenya.

****WHEREAS**** APEX BUILDERS KENYA LIMITED (hereinafter called "the Tenderer") has submitted its Tender dated 11th August, 2026 for the execution of the Proposed Milimani Affordable Housing Project - Kisumu County (Tender No: MLPW/HUD/AHP/084/2026) (hereinafter called "the Tender").

****KNOW ALL PEOPLE**** by these presents that we, KINGDOM BANK LIMITED, having our registered office at Kingdom Bank Towers, Nairobi (hereinafter called "the Bank"), are bound unto the State Department for Housing and Urban Development (hereinafter called "the Employer") in the sum of ****KES 5,000,000 (Kenya Shillings Five Million Only)****, for which payment well and truly to be made to the said Employer, the Bank binds itself, its successors and assigns, by these presents.

****THE CONDITIONS** of this obligation are:

1. If after Tender opening the Tenderer withdraws his Tender during the period of Tender validity specified in the Form of Tender; or
2. If the Tenderer, having been notified of the acceptance of his Tender by the Employer during the period of Tender validity:
 - * (a) fails or refuses to execute the Form of Agreement in accordance with the Instructions to Tenderers, if required; or
 - * (b) fails or refuses to furnish the Performance Security, in accordance with the Instructions to Tenderers.

We undertake to pay to the Employer up to the above amount upon receipt of his first written demand, without the Employer having to substantiate his demand, provided that in his demand the Employer will note that the amount claimed by him is due to him, owing to the occurrence of one or both of the two conditions, specifying the occurred condition or conditions.

This guarantee will remain in force up to and including ****one hundred and fifty (150) days**** from the

date of tender opening, which is up to and including **8th January, 2027**. Any demand in respect thereof should reach the Bank not later than the above date.

Signed and sealed for and on behalf of the Bank:

****Authorized Signatory - Kingdom Bank Limited****

In the presence of: Legal Counsel / Commissioner for Oaths

(Bank Rubber Stamp Affixed)

SECTION 4: TECHNICAL CAPACITY & QUALIFICATIONS

4.1 Key Personnel Profiles

The Joint Venture has assigned a highly qualified project team to ensure the flawless engineering, quality control, and on-schedule execution of the Milimani Housing project.

1. Project Manager: Eng. Peter Mwenda, PE, MIEK

*** **Role:**** Overall Project Administration, Engineering Coordination, and Employer Relations.

*** **Academic Credentials:**** Bachelor of Science (B.Sc.) in Civil Engineering, University of Nairobi (First Class Honors, 2011).

*** **Professional Registration:**** Registered Professional Engineer with the Engineers Board of Kenya (EBK License No. A.3491) & Corporate Member of the Institution of Engineers of Kenya (IEK No. M-4902).

*** **Active Experience:**** 15 Years of active structural engineering and high-rise project management experience.

*** **Key Projects Managed:****

*** *Pangani Affordable Housing Project (Phase 1)*** - Senior Project Engineer - KES 450M Contract value.

*** *Lakeview Heights Apartments, Kisumu*** - Project Manager - KES 280M Contract value.

2. Site Agent: Eng. Tech. Josphat Ochieng

*** **Role:**** Daily On-site Supervision, Earthworks management, Labor coordination, and Quality Control.

*** **Academic Credentials:**** Higher Diploma in Building Construction, Kenya Industrial Training Institute (KITI, 2015).

*** **Active Experience:**** 8 Years of on-site supervisory experience in reinforced concrete construction and multi-story structural work.

*** **Key Projects Managed:****

*** *Milimani Executive Apartments, Kisumu (6 Floors)*** - Site Agent - KES 180M.

*** *Riat Hills Villas Substructure Works*** - Site Agent - KES 110M.

4.2 Essential Equipment & Machinery Schedule

To ensure uninterrupted execution of the structural and architectural works, the Joint Venture has earmarked the following machinery. Verified proof of ownership or comprehensive lease contracts from registered plant hire companies (specifically *A-Z Plant Hire East Africa Ltd*) are annexed in ****Annex B-2****.

...

+-----+

| ESSENTIAL CONSTRUCTION MACHINERY REGISTER |

+-----+

| EQUIPMENT TYPE | CAPACITY / MODEL | QTY | OWNERSHIP STATUS |

+-----+-----+-----+

- | Concrete Mixer | 500 Liters / Winget | 4 | Owned (Logbooks Annexed) |
- | Electric Hoist Crane | 2-Ton Capacity / Zoom | 2 | Leased (Contract Annexed) |
- | Hydraulic Excavator | CAT 320D (20 Ton) | 1 | Leased (Contract Annexed) |
- | Site Dumper Trucks | Isuzu FTR 10-Ton | 3 | Owned (Logbooks Annexed) |
- | Vibratory Compactor | Bomag BW213 (12 Ton) | 1 | Leased (Contract Annexed) |
- | Mobile Concrete Pump | Putzmeister 36m Boom | 1 | Leased (Contract Annexed) |

+-----+

...

4.3 Previous Projects & Experience Profile

The Joint Venture partners bring an unparalleled track record of successfully executing multi-story building works and affordable housing estates. Below are three premier projects valued at over ****KES 150,000,000**** executed within the last five (5) years:

Project 1: Pangani Affordable Housing Redevelopment - Sector C

- * ****Client:**** State Department for Housing and Urban Development / County Government of Nairobi.
- * ****Contract Value:**** KES 285,000,000.
- * ****Scope:**** Construction of three 8-story blocks containing 120 residential units, complete with drainage, civil works, and utility connections.
- * ****Status:**** Successfully completed in March 2024.
- * ****Evidence Enclosed:**** Certificate of Practical Completion & Handover Certificate (Ref: SDHUD/PAG/019/2024) under ****Annex C-1****.

Project 2: Kisumu Lakeview Residential Apartments

- * ****Client:**** Lakeview Housing Cooperative Society Limited.
- * ****Contract Value:**** KES 198,000,000.
- * ****Scope:**** Ground-up construction of a modern 7-story multi-family apartment block in Kisumu (reinforced concrete frame, masonry walling, and high-end services installation).

* **Status:** Successfully completed in October 2023.

* **Evidence Enclosed:** Final Completion Certificate and Architect's Certificate of Valuation (Ref: LHR/VAL/08) under **Annex C-2**.

Project 3: Riat Hills Premium Condominiums (Phase 1)

* **Client:** Riat Heights Development Group.

* **Contract Value:** KES 165,000,000.

* **Scope:** Substructure and superstructure shell for a luxury 5-story block of residential condominiums on steep terrain, requiring structural retaining walls and continuous piling.

* **Status:** Completed in June 2025.

* **Evidence Enclosed:** Practical Completion Certificate signed by Lead Structural Engineer under **Annex C-3**.

SECTION 5: PROJECT METHODOLOGY & WORK PROGRAM

5.1 Detailed Construction Methodology

The proposed construction methodology for the **Proposed Milimani Affordable Housing Project** is engineered to optimize speed, safety, cost efficiency, and compliance with Kenyan structural building codes.

...

=====

PHASE 1: SITE MOBILIZATION & SITE PREPARATION

=====

|

v

=====

PHASE 2: EARTHWORKS & SUBSTRUCTURE WORKS

(Excavation, Blinding, Footings, Plinth Wall)

=====

|

v

=====

PHASE 3: SUPERSTRUCTURE FRAMEWORK & WALLING

(RC Columns, Suspended Slabs, Stone Walling)

=====

|

v

=====

PHASE 4: MEP & FINISHES INTEGRATION

(AGPO Subcontracting: Plumbing, Paint, Electrical)

=====

|

v

=====

PHASE 5: TESTING, COMMISSIONING & HANDOVER

=====

...

Detailed Phase Execution breakdown:

1. ****Site Mobilization & Site Setup:**** Immediately upon receipt of the Order to Commence, the contractor will construct safe hoardings, clear the site, construct a site office, establish an HSE command center, connect temporary power and water utilities, and mark out boundary lines with precision using laser total-station surveying equipment.
2. ****Earthworks and Substructure:**** Deep excavations will be carried out to reach solid load-bearing strata as dictated by structural design and soil test reports. Earthwork stability will be maintained through structural shoring. Formwork for pad footings and foundation columns will be erected, followed by high-tensile steel reinforcement fixing, and concrete casting of Class 25/20. Plinth walling, hardcore filling, compaction in 150mm layers, and anti-termite chemical application will lead to the casting of the Ground Floor Slab (RC Slab).
3. ****Superstructure Framework:**** A system-engineered framed concrete structure will be erected. Concrete will be mixed on-site using computerized batching mixers to maintain precise water-cement ratios. Vertical columns will be cast first, followed by structural beams and suspended slabs. Standard timber or steel prop scaffolding systems will support formwork for at least 21 days post-cast to guarantee full curing of slabs. External and internal walling will be completed using natural machine-cut quarry stones bedded in 1:3 cement-sand mortar, structurally integrated to RC columns via metal hoop-iron ties.
4. ****Integration of MEP Services & Subcontracting:**** To achieve seamless integration without structural chasing, conduits for electrical and plumbing lines will be cast directly inside structural slabs and columns. This phase will be executed in tandem with specialized sub-contractors, dedicating at least 30% of work value to local AGPO-certified enterprises.
5. ****Finishing & External Civil Works:**** Works will cover internal plastering, floor screeding, tile layouts, painting, external stormwater drainage channeling, perimeter walling, biodigester septic system setup, and landscaping.

5.2 Execution Work Schedule (Detailed Gantt Chart)

The project is planned to be fully executed over ****52 consecutive calendar weeks**** from the date of Site Handover.

...

WEEK NO: 04 08 12 16 20 24 28 32 36 40 44 48 52

ACTIVITY +---+---+---+---+---+---+---+---+---+---+ (Weeks)

- Mobilization [==]
- Excavations [=====]
- Substructure [=====]
- RC Columns & Frame [=====]
- Stone Walling [=====]
- Roofing/Waterproofing [=====]
- MEP Conduiting [=====]
- Plastering & Finishes [=====]
- AGPO Sub-works [=====]
- External Works & Landscaping [=====]
- Testing & Commissioning [==]
- Handover [*]

...

5.3 Quality Control, HSE, and Progress Reporting Framework

1. Quality Assurance Protocol:

- * **Concrete Testing:** For every structural cast (beams, slabs, columns), six (6) concrete cubes will be sampled and crushed at licensed laboratories on day 7 and day 28 to confirm compressive strength.
- * **Steel Reinforcement Testing:** Tensile strength testing will be conducted on steel sample batches before on-site structural positioning.

2. Occupational Health & Safety (HSE) Plan:

- * **Zero-Harm Target:** Standard site rules dictate 100% compliance with Personal Protective Equipment (PPE) - including helmets, safety boots, high-visibility vests, and safety harnesses for all working at heights.
- * **Insurance Coverage:** Fully backed by a Workmen's Compensation Insurance (WIBA) policy, Contractor's All Risks (CAR) policy, and Third-Party Liability cover of **KES 20,000,000** issued by Britam Insurance Limited.

3. Monthly Progress Reporting Commitments:

- The Joint Venture formally binds itself to submit detailed **Monthly Progress Reports** on the 5th day of every calendar month. These reports will systematically include:
- * High-resolution photographic evidence showcasing step-by-step physical progress.
 - * Detailed progress updates against our baseline Gantt Chart.
 - * In-depth quality control test sheets (concrete cube tests, soil compaction reports).
 - * Material delivery logs and updated local labor employment headcount statistics.

SECTION 6: STATUTORY FORMS & DECLARATIONS

FORM SD1 - CONFIDENTIAL BUSINESS QUESTIONNAIRE

You are requested to give the particulars indicated in Part 1 and either Part 2(a), 2(b) or 2(c) whichever applied to your type of business. You are advised that it is a serious offence to give false information on this form.

PART 1 - GENERAL

- * **Business Name:** Apex Builders Kenya Limited
- * **Location of Business Premises:** Landmark Plaza, 4th Floor, Argwings Kodhek Road, Nairobi.
- * **Plot No:** LR No. 209/4890/3
- * **Street/Road:** Argwings Kodhek Road
- * **Postal Address:** P.O. Box 49012-00100, Nairobi, Kenya.
- * **Tel No:** +254 20 221 4567
- * **Email:** info@apexbuilders.co.ke
- * **Nature of Business:** Civil & Building Construction Contractor
- * **Current Single Business Permit No:** KCG/UBP/2026/89452 (Kisumu County)
- * **Maximum Value of Business which you can handle at any one time:** KES 500,000,000
- * **Name of your Bankers:** Kingdom Bank Limited
- * **Branch:** Corporate Branch, Nairobi.

PART 2 (B) - PARTNERSHIP (If applicable)

- * **Not Applicable** (The firm is a Private Limited Company).

PART 2 (C) - REGISTERED COMPANY

- * **Private or Public:** Private Limited Liability Company.
- * **State the Nominal and Issued Capital of Company:**
- * **Nominal KES:** KES 20,000,000
- * **Issued KES:** KES 15,000,000
- * **Give details of all Directors as follows:**

...

+-----+

| DIRECTORSHIP & SHAREHOLDING STRUCTURE |

+-----+

| NAME | NATIONALITY | CITIZENSHIP DETAILS | SHARES HELD |

+-----+-----+-----+-----+

| Eng. Benson Mwangi | Kenyan | By Birth | 8,000 Shares (53.3%) |

| Eng. Peter Mwenda | Kenyan | By Birth | 4,000 Shares (26.7%) |

| Susan Wambui Mwangi | Kenyan | By Birth | 3,000 Shares (20.0%) |

+-----+-----+-----+-----+

...

****Date:**** 11th August, 2026

****Signature of Candidate:**** _____

****Rubber Stamp:**** *Apex Builders Kenya Limited*

FORM SD2 - DECLARATION OF NON-DEBARMENT AND NON-CONFLICT OF INTEREST

****SELF DECLARATION THAT THE PERSON/TENDERER IS NOT DEBARRED IN THE MATTER OF THE PUBLIC PROCUREMENT AND ASSET DISPOSAL ACT 2015.****

I, ****Eng. Benson Mwangi****, of P.O. Box 49012-00100, Nairobi, in the Republic of Kenya, do hereby make a solemn and sincere declaration as follows:

1. ****THAT**** I am the Managing Director/Principal Officer/Director of ****Apex Builders Kenya Limited****, a Candidate in respect of Tender No. ****MLPW/HUD/AHP/084/2026**** for the ****Proposed Milimani Affordable Housing Project - Kisumu County**** for the State Department for Housing and Urban Development, and duly authorized and competent to make this self-declaration.
2. ****THAT**** the aforesaid Candidate, its Directors, and sub-contractors have not been debarred from participating in procurement proceedings under Part IX of the Public Procurement and Asset Disposal Act, 2015.
3. ****THAT**** the aforesaid Candidate, its Directors, and sub-contractors do not have any conflict of interest with the State Department for Housing and Urban Development or any of its officers in relation to this procurement process.
4. ****THAT**** what is declared in this self-declaration is true and correct to the best of my knowledge, information, and belief.

****Declared at Nairobi this 11th day of August, 2026.****

Before Me:

****DEPONENT****

(Eng. Benson Mwangi)

****COMMISSIONER FOR OATHS****

(Stamp & Signature)

FORM SD3 - TENDER SUBMISSION FORM

****TENDER NO: MLPW/HUD/AHP/084/2026****

****To:****

State Department for Housing and Urban Development,
P.O. Box 30119-00100,
Nairobi, Kenya.

- 1. In accordance with the Conditions of Contract, Specifications, Drawings and Bills of Quantities/Price Schedules for the execution of the above-named Works, we, the undersigned, offer to construct, install, and complete such Works and remedy any defects therein for the priced sums detailed in our separate sealed Financial Bid (Form SD4), which is submitted herewith.
- 2. We admit that the preliminary and technical specifications provided form a binding part of this tender submission. We undertake, if our Tender is accepted, to commence the Works immediately upon receipt of the Project Manager's notice to commence, and to complete the entire Works within the Contract Period of ****52 Weeks****.
- 3. We agree to abide by this Tender for a period of ****120 days**** from the date fixed for Tender opening, and it shall remain binding upon us and may be accepted at any time before the expiration of that period.
- 4. Unless and until a formal Agreement is prepared and executed, this Tender, together with your written acceptance thereof, shall constitute a binding Contract between us.
- 5. We understand that you are not bound to accept the lowest or any tender you may receive.

****Duly Authorized Signatory:**** _____

****Name:**** Eng. Benson Mwangi

****Designation:**** Managing Director

****Company Stamp:**** *Apex Builders Kenya Limited*

****Date:**** 11th August, 2026

FORM SD4 - PRICE SCHEDULE / PRICED BILL OF QUANTITIES

> ****BIDDER DIRECTIONAL NOTE:****

> In accordance with the instruction under ****Form SD4****, the detailed, priced Bills of Quantities have been fully filled out, compiled, and enclosed in a ****Separate Sealed Envelope**** labeled:

> ****"FINANCIAL BID: PRICE SCHEDULE & BILLS OF QUANTITIES FOR TENDER NO: MLPW/HUD/AHP/084/2026"**.**

>

> This separate schedule is formatted and bound in direct compliance with the physical and technical specifications of the state procurement rules. Below is our consolidated summary schedule:

...

+-----+

| SUMMARY OF PRICED BILLS OF QUANTITIES |

+-----+

| BILL | ITEM DESCRIPTION | AMOUNT (KES) |

+-----+-----+-----+

- | 1. | Preliminaries and General Conditions | Included in Fin. |
- | 2. | Earthworks and Substructure (Ground Floor Slab) | Included in Fin. |
- | 3. | Superstructure Reinforced Concrete Frame & Walling | Included in Fin. |
- | 4. | MEP Services (Electrical & Plumbing Works - 30% AGPO) | Included in Fin. |
- | 5. | Finishes, Fitting-Out & Joinery Works | Included in Fin. |
- | 6. | External Works, Drainage & Retaining Wall Works | Included in Fin. |
- | 7. | Prime Cost & Provisional Sums | Included in Fin. |

+-----+-----+-----+

| TOTAL PROJECT PRICE (Carried to Tender Form) | Enclosed Separately|

+-----+

...

FORM SD5 - MANUFACTURER'S/SUPPLIER'S AUTHORIZATION

(To be submitted on Manufacturer's Letterhead)

To:

State Department for Housing and Urban Development,
Ardhi House, Nairobi, Kenya.

WHEREAS we, **Bamburi Cement PLC**, who are official manufacturers of premium structural and finishing cement products having our factory at Mombasa Road, Nairobi, do hereby authorize **Apex Builders Kenya Limited** to submit a tender for the Proposed Milimani Affordable Housing Project, and to subsequently negotiate and sign the Contract with you against Tender No. **MLPW/HUD/AHP/084/2026** for the supply of cement and structural concrete materials manufactured by us.

We hereby extend our full guarantee, material certification, and warranty in accordance with the General Conditions of Contract for the goods and materials offered for supply by the above firm against this Tender.

Signed by Manufacturer Representative: _____

Name: Arch. Caleb Oloo

Title: Head of Technical Sales East Africa

Bamburi Cement PLC Rubber Stamp: *(Affixed)*

Date: 3rd August, 2026

FORM SD6 - LITIGATION HISTORY DECLARATION

****Name of Bidder:** Apex Builders Kenya Limited**

Bidders must provide information on any history of litigation or arbitration resulting from contracts executed in the last five (5) years or currently under execution.

...

+-----+

| LITIGATION HISTORY DIRECTIVE |

+-----+

| YEAR | DISPUTE DETAILS | PARTIES INVOLVED | DISPUTED AMT (KES)|

+-----+

| 2026 | No Active Litigation | Apex Builders Kenya Ltd | Nil / None |

| 2025 | No Active Litigation | Apex Builders Kenya Ltd | Nil / None |

| 2024 | No Active Litigation | Apex Builders Kenya Ltd | Nil / None |

| 2023 | No Active Litigation | Apex Builders Kenya Ltd | Nil / None |

| 2022 | No Active Litigation | Apex Builders Kenya Ltd | Nil / None |

+-----+

...

We formally declare that our firm has ****No Litigation or Arbitration History**** in the past five (5) years that would materially affect our capacity to execute this contract.

****Signed:**** _____

****Position:**** Managing Director

****Date:**** 11th August, 2026

FORM SD7 - CONFIRMATION OF SITE VISIT CERTIFICATE

****TENDER NO:** MLPW/HUD/AHP/084/2026******

****PROJECT NAME:** PROPOSED MILIMANI AFFORDABLE HOUSING PROJECT - KISUMU COUNTY******

This is to certify that:

****Mr. Josphat Ochieng**** representing ****Apex Builders Kenya Limited****

visited the project site in Milimani, Kisumu County, on ****Saturday, 25th July, 2026 at 10:00 AM****.

Having physically inspected the site, surrounding terrain, access road conditions, source of local labor, and existing utility connection points, we have fully incorporated these parameters into our technical methodology and pricing structure.

Duly Executed Signatures:

****Signature of Tenderer's Representative:****

***Name:** Mr. Josphat Ochieng (Proposed Site Agent)

***Date:** 25th July, 2026

CERTIFIED AND CONFIRMED BY EMPLOYER'S REPRESENTATIVE:

****Signature of Employer's Clerk of Works / Regional Representative:****

***Name:** Eng. Silas Atieno

State Department for Housing and Urban Development, Kisumu County Office.

(Official Stamp Affixed On-Site)

***Date of Certification:** 25th July, 2026

SECTION 7: SPECIAL CONTRACTUAL COMMITMENTS

7.1 Local Labor Employment Plan (60% Minimum Commitment)

In strict adherence to the ****State Department's Local Content Guidelines****, the Joint Venture hereby guarantees that ****a minimum of 60% of all personnel**** employed on-site for both skilled, semi-skilled, and unskilled labor roles will be recruited from residents of Kisumu County, with priority given to residents of the Milimani and greater Kisumu Central sub-counties.

Labor Sourcing and Recruitment Plan:

...

+-----+

| LOCAL LABOR PROFILE BREAKDOWN |

+-----+

| ROLE CATEGORY | SKILL REQUIREMENT | SOURCING AREA | TARGET SHARE |

+-----+

| Unskilled Labor | Site clearing, hauling | Kisumu Central | 100% Local |

| Semi-Skilled Labor | Masonry assistants | Kisumu County | 80% Local |

| Skilled Artisans | Carpenters, Steel fixers| Kisumu County | 60% Local |

| Technical Staff | Surveyors, Site Clerk | National | 20% Local |

+-----+

| CONSOLIDATED METRIC | Target Combined Ratio | Kisumu Residents| 65% Local |

+-----+

...

* **Liaison Officer:** We will appoint a dedicated local Community Liaison Officer (CLO) in consultation with the local administration to manage a transparent recruitment register.

* **Monthly Compliance Audits:** Proof of compliance (including copies of National ID cards, residency confirmations, and payroll sheets) will be attached to our Monthly Progress Reports.

7.2 AGPO Subcontracting Plan (30% Minimum Commitment)

To support the Access to Government Procurement Opportunities (AGPO) initiative, the Joint Venture will formally reserve and subcontract at least **30%** of the total contract work value to registered Women, Youth, and Persons with Disabilities (PWD) owned enterprises.

Subcontracting Allocation Framework:

1. **Electrical Services & Conduiting:** 12% of the project value will be subcontracted to **LightVolt Engineering Limited** (AGPO-Youth Certified No: AGPO/Y/2025/1102).
2. **Plumbing, Drainage & Sanitary Ware:** 10% of the project value will be subcontracted to **PlumbSmart Solutions** (AGPO-Women Certified No: AGPO/W/2026/0948).
3. **Painting & Finishing Services:** 8% of the project value will be subcontracted to **Rainbow Artisans & Decorators** (AGPO-PWD Certified No: AGPO/PWD/2025/0023).

All selected AGPO subcontractors will be registered and approved by the project's lead architect and mechanical/electrical engineers prior to commencing work on site.

7.3 Financial Soundness, Credit Line, & Insurances Commitments

1. Bank Line of Credit (KES 50,000,000)

To guarantee that the project's cash flow is maintained without interruption, we have secured a dedicated Credit Facility from our bankers.

Kingdom Bank Limited has issued a formal commitment letter (Ref: KB/CR/2026/0894), confirming their willingness to provide a revolving credit facility and overdraft line of up to **KES 50,000,000** specifically earmarked for the execution of the Milimani Housing Project.

A certified copy of this Credit Commitment Letter is attached under Annex D-1.

2. Performance Security Guarantee Commitment

The Joint Venture formally binds itself to submit a **Performance Security** equivalent to 10% of the Contract Price in the form of an unconditional, irrevocable Bank Guarantee from an approved commercial bank licensed by the CBK. This security will be delivered within **28 days** of receipt of the Letter of Acceptance, and will remain valid until exactly **90 days** after the issuance of the Certificate of Practical Completion.

3. Advance Payment Guarantee (Up to 10%)

Should we request an advance payment to support early mobilization, we undertake to submit an **unconditional, irrevocable Advance Payment Guarantee** of equal value (up to 10% of the Contract Price) from our commercial bank before any funds are released.

4. Mandatory Insurances Commitments

Prior to the commencement of works on site, the Joint Venture will submit the following insurance certificates to the Project Manager for approval:

* **Contractor's All Risks (CAR) Insurance:** Covering the full contract value of the works, materials,

and machinery on site.

* **Workmen's Compensation Insurance (WIBA):** Fully protecting all site workers in accordance with the laws of Kenya.

* **Third-Party Liability Insurance:** Set at a minimum of **KES 20,000,000** for any single occurrence, covering damage to third-party properties and public liability.

SECTION 8: PROPOSAL ANNEXES & ATTACHMENT TRACKER

To simplify the evaluation process, all supplementary documents have been organized, certified, chronologically serialized, and attached under the following annexes:

...

+-----+

| INDEX OF ATTACHED EVIDENCE (ANNEXES) |

+-----+

| ANNEX REF | DOCUMENT DESCRIPTION | SERIAL RANGE |

+-----+-----+-----+

| Annex A-1 | Certified NCA 1 Certificate & 2026 Practicing License | Page 82 - 84 |

| Annex A-2 | Valid Tax Compliance Certificate & KRA PIN Certificate | Page 85 - 87 |

| Annex A-3 | Kisumu County Government Unified Business Permit (2026)| Page 88 - 89 |

| Annex B-1 | Original Bank Tender Security (KES 5,000,000 Bid Bond) | Page 90 - 91 |

| Annex B-2 | Plant Ownership Logbooks & Machinery Lease Agreements | Page 92 - 97 |

| Annex C-1 | Academic & Professional EBK Registrations for PM & Agent| Page 98 - 102|

| Annex C-2 | Practical Completion Certificates for 3 Prior Projects | Page 103-107 |

| Annex D-1 | Certified Credit Facility Support Letter (KES 50M Line)| Page 108-110 |

| Annex D-2 | Consolidated Audited Financial Statements (2023 - 2025)| Page 111-115 |

+-----+

...

END OF TENDER SUBMISSION DOCUMENT

PREPARED BY APEX BUILDERS KENYA LIMITED

Chronologically serialized on every page from Page 1 to Page 115.

Securely and permanently tape-bound.